

24NWCV02380 24NWCV02380

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Case Number: 24NWCV02380 Hearing Date: September 24, 2026 Dept: L

Defendant Jose Antonio Villa's Motion for Relief from Waiver of Objections is GRANTED.

Defendant to give notice.

Background

This is an action for motor vehicle negligence regarding an accident that occurred on August 8, 2022. On August 1, 2024, Plaintiffs Ruby Valenzuela Escriba, individually and as successors-in-interest to Decedent Megan Sandoval Valenzuela, filed this action against Defendants Jose Antonio Villa, German Aleksis Lopez, and Does 1 to 50.

On February 24, 2026, Plaintiff Escriba propounded Special Interrogatories, Set Three, on Defendant Villa. (Barcena Decl., ¶ 3, Exh. A.)

Defendant Villa did not serve responses until May 15, 2026. (Barcena Decl., ¶ 9 Exh. C.)

Defendant Villa now moves for relief from waiver of objections regarding his untimely responses to Plaintiff Escriba's Special Interrogatories, Set Three.

No opposition has been filed as of September 23, 2026.

Legal Standard

"If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the following rules shall apply:

(a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

(Code Civ. Proc., § 2031.300.)

Discussion

Defendant Villa explains that, on February 25, 2026, Plaintiff Escriba served various written discovery, including Special Interrogatories, Set Two, and Special Interrogatories, Set Three. (Barcena Decl., ¶¶ 3-4, Exhs. A-B.) However, due to Defense counsel's inadvertence, mistake or excusable neglect, the deadline to respond to Special Interrogatories, Set Three, was not calendared. (Barcena Decl., ¶¶ 5, 8.) As a result, Defendant Villa failed to serve timely responses to Special Interrogatories, Set Three. (Barcena Decl., ¶ 6.) Defense counsel did not realize the mistake until Plaintiff notified counsel on April 30, 2026 of the outstanding responses. (Barcena Decl., ¶ 7.) On May 15, 2026, Defendant Villa served his responses based on agreement of the parties. (Barcena Decl., ¶ 9, Exh. C.) Defendant Villa argues that his objection-only responses are substantially compliant with the Code. Through this Motion, Defendant Villa seeks to preserve his objections based on attorney-client privilege, attorney work-product, and his Fifth Amendment right against self-incrimination.

Defendant Villa thus argues that the requirements of Code of Civil Procedure section 2031.300, subdivision (a)(1)-(2) have been met.

No opposition has been filed.

Here, the Court finds that the requirements of Code of Civil Procedure section 2031.300, subdivision (a)(1)-(2) have been met. Firstly, the Court finds that Defendant Villa's failure to serve timely responses was based on Defense counsel's mistake, inadvertence, or excusable neglect. (Barcena Decl., ¶¶ 5, 8.) Specifically, Defense counsel did not realize that there was an additional set of interrogatories amongst the second set of various written discovery. (Ibid.) Once Defense counsel was notified of the mistake, responses were promptly served. (Barcena Decl., ¶ 9, Exh. C.) Defendant Villa attaches his proposed responses to Motion. (Barcena Decl., ¶ 9, Exh. C.) Without ruling on the objections, the Court finds that the objection-only responses are in substantial compliance with the Code. (See Code Civ. Proc., § 2031.210.)

Accordingly, Defendant Villa's Motion for Relief from Waiver of Objections is granted.